

23STCV24762 23STCV24762

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-13

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Dept. F-46

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DEFENDANTS' MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Motion filed on April 21, 2026.

MOVING PARTY: Defendants Southern California Regional Rail Authority dba Metrolink and Los Angeles County Metropolitan Transportation Authority dba LA Metro

RESPONDING PARTY: Plaintiff Maria De La Luz Alvarado

NOTICE: OK.

RELIEF REQUESTED: Summary judgment on Plaintiff's Complaint or, alternatively, summary adjudication of the first and second causes of action.

RULING: Continued to October 12, 2026, at 8:30 a.m. in Department F-46.

DISCUSSION

The pleadings define the issues presented on summary judgment. A party seeking consideration of a previously unpleaded issue may request leave to amend at or before the hearing on the motion. (Bostrom v. County of San Bernardino (1995) 35 Cal.App.4th 1654, 1663-1664.)

Plaintiff's opposition requests leave to amend the Complaint. Plaintiff has not submitted a proposed amended complaint or a declaration addressing the requirements of California Rules of Court, rule 3.1324.

The hearing is continued to permit further briefing on Plaintiff's request for leave to amend, including diligence, prejudice, consistency with the existing Complaint, and whether the proposed allegations are fairly reflected in the government claim. The Court reserves ruling on Defendants' motion.

ORDER

The hearing on Defendants' motion for summary judgment or, alternatively, summary adjudication is continued to October 12, 2026, at 8:30 a.m. in Department F-46.

If Plaintiff intends to pursue the request for leave to amend, Plaintiff shall file and serve a noticed motion no later than September 10, 2026. The motion is specially set for hearing with Defendants' motion on October 12, 2026. No separate reservation is required.

The motion shall comply with California Rules of Court, rule 3.1324 and include the proposed amended complaint. The supporting declaration shall state when the facts supporting amendment were discovered and explain why amendment was not sought after Plaintiff's January 31, 2025 deposition or in connection with Plaintiff's July 23, 2025 Amendment to Complaint. Plaintiff shall also address whether the proposed allegations are fairly reflected in the government claim and the effect of amendment on the pending motion.

Defendants may file and serve an opposition no later than September 24, 2026. Plaintiff may file and serve a reply no later than October 1, 2026.

If Plaintiff does not timely move for leave to amend, the request will be deemed withdrawn, and Defendants' motion will be decided based on the existing Complaint and the papers presently filed. No further briefing on the merits may be filed without leave of Court